

ELIZABETH II



1976 CHAPTER xxxii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to East Kilbride District Council. [15th November 1976]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the East Kilbride District Council Short title. Order Confirmation Act 1976.

SCHEDULE

EAST KILBRIDE DISTRICT COUNCIL

Provisional Order to enact provisions with respect to the provision and sale of excisable liquor in certain premises belonging to or occupied by or provided by the East Kilbride District Council; to confer powers on the Council with respect to stray dogs; and for other purposes.

1973 c. 65.

Whereas the East Kilbride District Council (hereinafter referred to as "the Council") are vested with all the functions of a district council by virtue of section 2 of the Local Government (Scotland) Act 1973 for the area of East Kilbride as the said area is described in column 3 of Part III of Schedule 1 to the said Act:

And whereas it is expedient that provision should be made whereby the Council would be enabled to provide and sell or arrange for the provision and sale of excisable liquor in certain premises belonging to or in the occupation of or provided by the Council and that the provisions of section 91 of the Local Government (Scotland) Act 1973 in their application to such premises should be modified:

And whereas it is expedient that powers should be conferred upon the Council with respect to the control of stray dogs:

And whereas it is expedient that the other provisions of this Order should be enacted:

1936 c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the said Act the Secretary of State orders as follows:—

Short title and
citation.

1. This Order may be cited as the East Kilbride District Council Order 1976.

Interpretation.

2.—(1) For the purposes of this Order—

“Council” means the East Kilbride District Council;

“district” means the East Kilbride district.

(2) Any reference in this Order to any other enactment shall, except so far as the context otherwise requires, be construed as a reference to that enactment as amended by or under any other enactment.

3.—(1) For the avoidance of doubt it is hereby declared that members of the licensing court and of the licensing appeal court of the district shall not be disqualified from acting in the granting or confirming of a certificate or certificates for the sale of excisable liquor in the district at the Civic Theatre and at Olympia or at any golf course or indoor bowling premises or ice rink provided by the Council solely by virtue of their being members of the Council.

As to certificates for sale of excisable liquor and modification of section 91 of Local Government (Scotland) Act 1973.

(2) The Council may by themselves or any person appointed by them in that behalf, apply for, and hold certificates for the sale of excisable liquor at any such places as are mentioned in subsection (1) of this section.

(3) In its application to the places mentioned in subsection (1) of this section, section 91 of the Local Government (Scotland) Act 1973 shall be read and have effect as if subsection (6) thereof were omitted.

1973 c. 65.

4.—(1) In its application to the district section 3 (Seizure of stray dogs) of the Dogs Act 1906 shall be read and have effect as if the following subsections were substituted for subsections (1) to (7) of that section:—

As to application of section 3 of Dogs Act 1906.
1906 c. 32.

“(1) Where a police officer or a duly authorised officer of the Council has reason to believe that any dog found in a highway or place of public resort is a stray dog, he may seize the dog and may detain it until the owner has claimed it and paid all expenses incurred by reason of its detention.

(2) Where any dog so seized wears a collar having inscribed thereon or attached thereto the address of any person, or the owner of the dog is known, the chief officer of police, or any person authorised by him in that behalf, or the Council, or any person authorised by them in that behalf, as the case may be, shall serve on the person whose address is given on the collar, or on the owner, a notice in writing stating that the dog has been so seized, and will be liable to be sold or destroyed if not claimed within seven clear days after the service of the notice.

(3) A notice under this section may be served either—

(a) by delivering it to the person on whom it is to be served; or

(b) by leaving it at that person's usual or last known place of abode, or at the address given on the collar; or

(c) by forwarding it by post in a prepaid letter addressed to that person at his usual or last known place of abode, or at the address given on the collar.

(4) Where any dog so seized has been detained for seven clear days after the seizure, or, in the case of such a notice as aforesaid having been served with respect to the dog, then for seven clear days after the service of the notice, and the owner has not claimed the dog and paid all expenses incurred by reason of its detention, the chief officer of police, or any

*East Kilbride District Council Order
Confirmation Act 1976*

person authorised by him in that behalf, or the Council or any person authorised by them in that behalf, as the case may be, may cause the dog to be sold or destroyed in a manner to cause as little pain as possible.

- (5) No dog so seized shall be given or sold for the purposes of vivisection.
- (6) The chief officer of police and the Council shall keep, or cause to be kept, one or more registers of all dogs seized under this section by him or them which are not transferred to an establishment for the reception of stray dogs. The register shall contain a brief description of the dog, the date of seizure, and particulars as to the manner in which the dog is disposed of, and every such register shall be open to inspection by any member of the public on payment of a fee of five pence.
- (7) A dog seized under this section shall not be disposed of by transferring it to an establishment for the reception of stray dogs unless a register is kept for that establishment containing such particulars as to dogs received in the establishment as are above mentioned, and such register is open to inspection by any member of the public on payment of a fee not exceeding five pence."

(2) The Council may appoint such officers as they consider necessary for the discharge of the functions of the Council under this section.

Costs of Order. 5. The costs, charges and expenses of and incidental to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Council in such manner as they may determine.

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